

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Lucretia Hensworth v. Nazeeh Saleh Mismar

BEFORE: Justice H.J.W. Siegel

COUNSEL: Robert A. Zigler, for the Plaintiff

Todd J. McCarthy, for the Defendant

DATE HEARD: November 2, 2006

ENDORSEMENT

[1] On June 20, 2002, the plaintiff, Lucretia Hensworth (the “plaintiff” or “Hensworth”), was the driver of a pick-up truck stopped at a red light at the intersection of Lawrence Avenue East and Warden Avenue when it was rear-ended by a vehicle driven by the defendant, Nazeeh Saleh Mismar (the “defendant” or “Mismar”) (the “Accident”). The plaintiff claims general and specific damages, principally future income loss, in respect of injuries she alleges resulted from the Accident. While the defendant admits liability for the Accident, he disputes the plaintiff’s claim that the injuries she has suffered subsequently result from the Accident.

[2] During this trial, while the jury was deliberating, the defendant brought a “threshold motion” under the *Insurance Act*, R.S.O. 1990, c. I.8 as amended, (“the *Insurance Act*”). Since the litigation involved a motor vehicle accident that occurred on June 20, 2002, the plaintiff must meet the requirements of section 267.5(5) of the *Insurance Act* as in force on that date.

[3] I found that the plaintiff has sustained an injury that constitutes a permanent serious impairment of an important physical, mental or psychological function and therefore has satisfied the test in section 267.5(5). I indicated that I would release reasons for this determination after the trial. The following decision sets out my reasons on this issue.

Background

[4] The plaintiff is 33 years of age. She was born in Jamaica and came to Canada on a permanent basis in 1990 when she left her father, who lived in the United States, and came to live with her mother. She completed a four-year high school diploma in 1992. In November 1992, she gave birth to a daughter, Chanel, whom she has raised as a single parent. During the

three years following high school, the plaintiff worked in a number of jobs including as a call centre employee, a groundskeeper at York University, and a secretary/receptionist at an auto body garage.

[5] In 1995, the plaintiff, who has an interest in mechanical activities, commenced a two-year diploma programme in aviation maintenance at Centennial College. After the first year, however, she dropped out of the course, finding the combination of the return to school after the three-year hiatus and the need to care for her daughter to be too demanding.

[6] During the next year, she found contract work at the Workers' Compensation Board and as a groundskeeper. In addition, in the summer of 1998, she started work on a part-time basis at the Hospital for Sick Children ("HSC") on the housekeeping staff.

[7] In August 1997, she re-started the aviation maintenance course at Centennial College. During the next two years, she continued her studies during the day, working evenings several days a week at HSC and, commencing in 1999, working weekends at the Humber River Regional Hospital ("Humber"), also in housekeeping.

[8] The plaintiff received her diploma from Centennial College in aviation maintenance in the spring of 1999. However, despite an extensive job search over the next two years, she was unable to obtain a job in her chosen field. During this time she supported herself principally by working shifts on a part-time basis at each of HSC and Humber. In addition, she obtained seasonal work with Air Transat de-icing airplanes and with the Metropolitan Toronto Housing Authority.

[9] As a result of her inability to find employment in aviation maintenance, in 2001 the plaintiff enrolled in a one-year diploma programme at Centennial College in truck/coach maintenance. The programme provided the education necessary to apprentice as a truck/coach technician. A truck/coach technician is trained to diagnose and repair mechanical and other components and systems of buses, trucks, tractor-trailers and other large vehicles. It is understood that the apprentice period for a truck/coach technician typically runs for 4-5 years, although it is possible to obtain certification after as few as three years provided the requisite number of hours has been completed and the requisite skill level can be demonstrated.

[10] During her time at Centennial College, on her own initiative, the plaintiff identified a volunteer position at a truck garage close to the college, Big Wheels Truck & Trailer Repair ("Big Wheels"). The plaintiff says that she worked at Big Wheels on this basis after the school day two or three times per week. Accordingly, while at Centennial College for this year, in addition to school, she worked at either Big Wheels or HSC after school and at Humber on the weekends. She impressed the owner of Big Wheels sufficiently that he offered her an apprenticeship with Big Wheels after her graduation from the Centennial College programme. She was due to commence her apprenticeship on June 24, 2002.

[11] The plaintiff says that, after starting her apprenticeship, she intended to continue her part-time employment with HSC and Humber for a period of time. She wanted to supplement her

annual income, which would have started at approximately \$32,000 annually at Big Wheels, in order to support her and her daughter as well as to begin repayment of her student loans.

[12] The plaintiff's daughter, Chanel, developed into a difficult child at any early age. She has been diagnosed with an attention deficit hyperactive disorder with associated oppositional personality. To address her social and learning difficulties, the plaintiff obtained private tutoring for her. Subsequently, she placed her in a private school to provide more attention to attempt to address her various problems. The plaintiff has personally paid the costs of this private education, which are approximately \$750 per month.

[13] Prior to the Accident, the plaintiff was physically fit and exhibited no problems with her health or physical condition. While she had three previous minor automobile accidents in the ten years preceding the Accident, there is no evidence of any continuing injury resulting from those accidents and no insurance claim was made in respect of any of them.

[14] The evidence of the plaintiff and her partner, Mariela Anaya-Cortes, is that, prior to the Accident, she was very active, energetic and positive, jogging frequently after her night work, and involved in a lot of her daughter's activities. Similarly, the evidence of the plaintiff and her partner was that, while not out-going socially, the plaintiff was a generally happy person focussed on improving herself and being a good role model to her daughter. There is no evidence that the plaintiff experienced any episodes of depression, melancholia or other mental disorder prior to the Accident. While undoubtedly frustrated by her daughter's behaviour from time to time, there is also no evidence that the plaintiff was unable to cope with the difficulties presented by her daughter.

[15] On June 20, 2002, the day of the Accident, the plaintiff attended at the premises of Big Wheels to drop off her tools. She volunteered to pick up a part required for a truck repair and was given a company pick-up truck for the purpose. She says she did not put on the safety belt because the shoulder belt failed to retract.

[16] As mentioned above, she was parked at an intersection facing a red light when her vehicle was rear-ended by the defendant's vehicle. The defendant has admitted liability for the Accident. When she saw the defendant's vehicle was going to hit her truck, after glancing in the rear-view mirror, the plaintiff says she gripped the wheel and tensed for the impact. As a result of the Accident, the plaintiff was thrust sideways on the front bench of the seat. She says she was afraid and that she was in a lot of pain, which she described as "excruciating". Paramedics who assisted at the scene helped her out of the truck, put a collar on her and put her on a stretcher.

[17] She was taken to Scarborough General Hospital. X-rays taken at the Hospital did not show any fractures. She was released at the end of the day after being given Tylenol 3 for her pain and a neck brace. She continued to be in great pain the following day after a sleepless night.

[18] For the following 2-3 weeks, the plaintiff says she was in great pain. She required assistance in getting out of bed and could not dress herself, prepare her own meals, perform her

usual household chores, or drive. She required extra-strength Tylenol at least three times per day for her pain.

[19] On June 24, 2002, she saw her family physician, Dr. Di Cecco. On that occasion, her principal complaint was pain in her neck and upper back. She did not complain of headaches or lower back pain, although Dr. Di Cecco noted some muscle tenderness in the lower back in his notes. Dr. Di Cecco diagnosed a soft-tissue injury of mild to moderate severity of the neck and upper back and recommended physiotherapy, chiropractic therapy or massage therapy.

[20] Accordingly, the plaintiff arranged for physiotherapy at Target Rehabilitation Centre, which she attended daily from July 23, 2002 until July 29, 2002. She says that the pain in her neck and upper back had improved substantially by the end of July 2002. In accordance with a settlement of her statutory accident benefits entitlement, negotiated in July 2002 through a paralegal, the plaintiff ceased to be entitled to reimbursement for further physiotherapy after July 2002. As a result, she has received no further physiotherapy since that time. Instead, she has concentrated on a combination of understanding and avoiding the postural situations that will create pain, and on stretching exercises that she was given at the Clinic.

[21] The plaintiff returned to work at both HSC and Humber during July 2002. The plaintiff says that she worked in constant pain for the rest of the year and often required painkillers. Both hospitals were able to accommodate her physical limitations by limiting her activities to those that minimized her pain.

[22] The plaintiff did not, however, commence her apprenticeship at Big Wheels as she concluded that the job was too demanding physically. She did not feel that she was able to perform the lifting required in the course of the job, which regularly involved lifting heavy objects weighing up to 50 pounds, including starters, alternators, brake drums and radiators. In addition, she did not believe she could assume the unnatural postures and positions required to service the vehicles, including climbing onto engines, crawling underneath vehicles, and bending over assemblies while doing repairs. In part, she reached this conclusion on the basis of the difficulty she experienced in performing routine maintenance on her own two cars and a motorcycle that, before the Accident, she enjoyed and performed efficiently.

[23] The plaintiff returned to Dr. Di Cecco on September 18, 2002. On that date, her chief complaint was pain in her lower back. She said she experienced chronic pain daily, made worse by forward and backward stretching of her back. He diagnosed mechanical lower back pain, prescribed an anti-inflammatory drug and Tylenol #2, and advised of the need to exercise.

[24] During the remainder of 2002, the plaintiff says she suffered pain in her neck and upper back, pain in her lower back, and headaches from time to time. She says she experienced pain most of the time, of which the greater pain was in the neck and upper back, although this is inconsistent with her statement to Dr. Di Cecco on September 18, 2002. She says that she did, however, experience a lot of improvement by maintaining regular stretching exercises.

[25] She divides the pain since 2002 into three categories. First, she describes a lower level pain that is present most of the time for which she does not require medication. Second, she

describes a more intense lower back pain that she cannot ignore. She deals with this pain by a combination of medication, breaks, hot baths if feasible, and avoidance of postures and movements that she knows will trigger the onset of this pain. Last, she describes a third category of excruciating pain in her upper back that takes her breath away, prevents normal movements, and requires both medication and bed rest to dissipate.

[26] During 2003, the plaintiff continued to work at the HSC, although with declining hours after the hospital ended its accommodation of her injuries, and at Humber, where she obtained a higher paid, lighter duty position as a porter and was able to increase her hours. She also had some additional part-time work as a security guard in hospitals, being engaged by a corporate provider of such services.

[27] On March 10, 2003, she saw Dr. Di Cecco again. At that time she stated that her neck was 75% or 80% better but her lower back remained a problem, having improved only 50%. On examination, she exhibited similar problems as on September 18, 2002. Dr. Di Cecco diagnosed lumbar strain. In July 2003, she was assessed by Dr. Raphael Chow, whose evidence is set out below. Earlier, on April 22, 2003, she was also the subject of a functional capacity evaluation performed by Atila Balaban, whose evidence is also set out below.

[28] In November 2003, after an extensive search for a permanent job, she obtained full-time employment as a driver for Wheel Trans, a division of The Toronto Transit Commission (the "TTC"). She says that the job requirement of prolonged sitting aggravated her symptoms of lower back pain, particularly during the first year until she learned to avoid the movements that triggered the pain and increased the extent of her exercise. She says that she endured the pain because, although it did not provide the same job satisfaction as a truck/coach technician, she was happy to have a permanent job. She says that, during this time, she needed a hot bath or shower, heat ointment and bed rest to deal with the lower back pain at the end of each day.

[29] By the end of 2003, she says her symptoms had improved considerably, particularly as she had learned to identify activities that triggered the lower back pain and was exercising more frequently. She says she was, however, still experiencing the lower back pain two or three times weekly, generally when she overexerted herself. She also says that she experienced the worst category of pain two or three times per month.

[30] During 2004, the plaintiff maintained her full-time position with Wheel Trans, which continues at the present time. She says she reduced her hours at Humber because the increased pain resulting from her Wheel Trans job made it difficult to handle the requirements of the hospital position. During 2005, however, her hours at Humber increased again, which the plaintiff ascribes to an increase in the amount of her exercise as well as a conscious effort to work more hours.

[31] By the end of 2005, the plaintiff says her symptoms had improved further. Currently, she says she continues to experience the milder pain daily but the frequency of the lower back pain is generally a result of actions that aggravate her back. These episodes occur most often at work or at the beginning of a jog or weight-training session, although continued exercise will dissipate

this pain. She says she only experienced the worst category of pain two or three times during the past year, but cannot identify any triggering causes for this pain.

[32] In addition to her physical pain, the plaintiff has been treated for episodes of depression and melancholy since 2003. She says that she first sought help in August 2003, when she contacted a Dr. Dief at the urging of friends who said she had become anti-social. She said she noticed that she was feeling very sad and had uncontrollable crying episodes. The plaintiff says that this condition, which has persisted since that time, has adversely affected her relationship with her partner by making her moody, less communicative and more difficult to deal with. She says that she is concerned that this is also very difficult on her daughter who is worried about her mother. Most recently, she requested that her family physician, Dr. Stables, refer her to a psychiatrist. He says she described difficulty functioning outside the workplace, lacking energy or an interest in socializing, and experiencing crying episodes without reason. As a result, she attended the outpatient clinic at Mt. Sinai Hospital on April 4, 2006. However, she says that neither of these sessions with Dr. Dief or the Mt. Sinai Hospital clinic provided her with techniques for dealing with her problems. In each case, the doctors that she consulted prescribed drugs, which she does not want to take.

Expert Witnesses

Dr. Raphael Chow

[33] Dr. Raphael Chow, a physiatrist, assessed the plaintiff on three occasions. On the first occasion, on July 16, 2003, the plaintiff reported symptoms of mild to severe lower back pain together with neck and upper back pain, and headaches from time to time. He concluded that the plaintiff was not pain focussed. He observed pain when the plaintiff extended her back and identified particular muscle tender points.

[34] Dr. Chow saw the plaintiff for a second time on March 2, 2004. At that time, the plaintiff told him she had improved about 70% since the Accident. Her main complaint was lower back pain. On examination, the plaintiff continued to exhibit pain in her lumbar spine and exhibited the same muscle tender points, although with somewhat less tenderness.

[35] Dr. Chow last saw the plaintiff on April 6, 2006. At that time, although the plaintiff said she continued to have symptoms of headaches once or twice per month, upper back pain once or twice per week, and lower back pain, no pain or tenderness was observed in the lumbar area on examination. Dr. Chow's opinion, however, is that it is not unusual for a person with the plaintiff's condition to have good and bad days.

[36] Based on his review, Dr. Chow is of the opinion that the plaintiff suffered a soft-tissue injury to her lower back as a result of the Accident. He believes the plaintiff is credible in her description of the Accident and her pain symptoms. Dr. Chow also indicated that, in forming his opinion, he relied on the functional capacity assessment of Mr. Balaban described below, which he considered confirmed his assessment that the plaintiff was credible in the description of her physical condition. He is also of the opinion that the plaintiff has reached her maximum level of

recovery and will continue to suffer a permanent pain condition in her lower back that is aggravated by over-exertion.

[37] Based on his understanding of the job of a truck/coach technician, Dr. Chow was also of the opinion that the plaintiff is unable to perform the heavy physical requirements of a truck/coach technician and will probably never be able to do so.

Dr. Ricky Miller

[38] Dr. Ricky Miller, a psychologist, assessed the plaintiff after an interview on March 30, 2006 and completion of written psychological testing by the plaintiff on April 6, 2006.

[39] Dr. Miller described the plaintiff as a person with a repressive coping style who tended to block out feelings of distress, both consciously and unconsciously, rather than focussing on them. As a result, when asked direct questions about pain or distress, she believes the plaintiff denies or minimizes the extent of her problems and does not dwell on them, with the result she has difficulty in describing her feelings.

[40] Dr. Miller was of the opinion that the plaintiff met the criteria for a psychological condition described as an "Adjustment Disorder with Depressed Mood". Dr. Miller was of the view that a principal cause of the plaintiff's condition was the loss of her intended career as a truck/coach technician as it prevented her from looking forward to living the life she had planned with an eventual goal of a management or ownership position. The other cause of her depression was the difficulty experienced with her daughter. Dr. Miller was of the opinion that the psychological testing revealed indications of significant depression and a pre-occupation with problems of pain, which, given her depression, took up much of the emotional and cognitive energy that the plaintiff would otherwise focus on her daughter.

[41] Dr. Miller also believes that the plaintiff is experiencing the pain she alleges, based on her pre-occupation with pain as revealed in the psychological testing as well as her decision not to pursue the career she most wanted.

Atila Balaban

[42] Mr. Balaban conducted a functional capacity evaluation of the plaintiff on April 22, 2003 and a re-examination on March 9, 2006. Mr. Balaban had the plaintiff perform a number of objective static and dynamic tests to assess the plaintiff's reaction to different stresses on her muscles under different postures and activities similar to those that would be involved as a truck/coach technician. In a large number of these situations, he observed muscle weaknesses and imbalances as well as abnormal body mechanics reflective of injury, pain and fatigue. In his view, the plaintiff's complaints of pain during the tests in her upper back and shoulder blades, and in her lower back, were consistent with abnormalities of body mechanics observed in the performance of the tests. The plaintiff also exhibited similar results when the tests were applied at the time of the second evaluation in 2006. At that time, the plaintiff complained that her lower

back pain had increased since the time of her first examination. This was reflected in a somewhat greater prominence of lower back pain over pain in her upper back and shoulder blades during the tests on the second evaluation.

[43] Mr. Balaban was of the view, based on consistency tests customarily used in similar evaluations, that the plaintiff gave a consistent honest effort in performing the tests. In his opinion, based on his understanding of the requirements of a truck/coach technician as described by the plaintiff, she was not physically able to perform the requirements of that occupation. The specific functional limitations upon which he relied in reaching that conclusion were limitations in her lifting ability and in her tolerance of the various postures and positions required in the course of her job, all of which produced pain symptoms in the plaintiff. While Mr. Balaban did not conduct a work site evaluation, he did suggest that a work site analysis should be conducted to determine if the vibrations to which the plaintiff was subject while seated as a Wheel Trans driver were also contributing to her lower back pain. This has not, however, occurred to date.

Dr. Michael Devlin

[44] Dr. Michael Devlin, a physiatrist, assessed the plaintiff on September 19, 2004 at the request of the defendant. The plaintiff told him that her complaint at that time was lower back pain that occurred intermittently but less frequently than weekly. Dr. Devlin understood that there were no particular aggravating or relieving factors that the plaintiff had identified but that, in her view, her back complaints were much improved. On examination, Dr. Devlin found a normal range of motion in the plaintiff's neck, upper back and lower back.

[45] Dr. Devlin is of the opinion that, as a result of the Accident, the plaintiff suffered some soft tissue injuries, resulting primarily in neck and upper back pain, which have completely resolved, and in lower back pain, which developed later. He stated that he had no reason to doubt the credibility of the plaintiff and, in particular, did not believe that she was exaggerating her pain symptoms. He was also of the opinion that there are no abnormalities associated with her lower back pain and that, from a functional perspective, the plaintiff had maintained her pre-Accident level of functional activity. However, on cross-examination, Dr. Devlin acknowledged that this opinion related to the functional requirements of her positions at the hospitals and at Wheel Trans. He was not aware of her intended career as a truck/coach technician and had not discussed the physical demands of that occupation with her. He also acknowledged that he did not take into consideration the functional capacity evaluation performed by Mr. Balaban.

Findings of Fact

Credibility of the Plaintiff

[46] I am satisfied that the plaintiff is generally credible and, in particular, is credible in her description of the pain she suffers. I reach this conclusion for the following reasons.

[47] First, with respect to the plaintiff's credibility generally, there is an absence of contradictory testimony despite valiant efforts by the defendant's counsel to identify discrepancies. There are some minor differences in the explanation given by her at different

times for the end of her part-time shifts at HSC. However, I do not think anything turns on the reason she stopped working at HSC. Therefore, I do not think these discrepancies are material.

[48] In addition, on two occasions, the defendant says the plaintiff indicated that she was wearing her seat belt. On one occasion, Dr. Devlin acknowledges that his note could have been wrong. There is certainly no definitive evidence. The other occasion was at her examination for discovery in this action in June 2004. There is, however, no means of ascertaining whether this was an error by the court reporter or an incorrect statement by her. It is, however, inconsistent with earlier statements given by her to, among others, Dr. Di Cecco and Dr. Teitel (of the Target Rehabilitation Centre) in 2002, as well as Dr. Alexov, Dr. Chow and Mr. Balaban and her family doctor in 2003, that acknowledged that she was not wearing her seat-belt at the time of the Accident. No purpose was therefore served by a statement in the discovery, or in her interview with Dr. Devlin, that she was wearing her seat-belt.

[49] Second, with respect to her pain, none of the medical experts raised any doubts regarding the validity of her complaints of neck or back pain including, in particular, her lower back pain. Both Dr. Chow and Dr. Devlin found her to be credible in the description of her pain symptoms and each indicated that they did not believe that she exaggerated her pain. Dr. Miller testified that the plaintiff's method of coping with difficulties in her life was to repress and minimize the problems, including pain, rather than to dwell on them. She also expressed the view that, given the plaintiff's coping style, her pre-occupation with pain, reflected in the psychological testing, implied that she suffered real pain. Her partner, Mariela Anaya-Cortes, also supported the description of her current condition and pain complaints.

[50] Third, the internal consistency checks in Mr. Balaban's functional capacity evaluation demonstrated, in his opinion, a consistent, honest effort on both occasions on which she was evaluated. Furthermore, it is significant that her test results were similar on both occasions despite the interval of three years. It is also relevant that, after reviewing the consistency tests in the functional capacity evaluations of Mr. Balaban, Dr. Chow satisfied himself that he could rely on the results as additional confirmation of his assessment.

[51] Lastly, there is no evidence before the Court that contradicts the plaintiff's complaints of pain and, in particular, her allegation that she continues to suffer lower back pain. The impression of Dr. Devlin, after his interview with the plaintiff in September 2004, was that the regularity of the onset of lower back pain was somewhat less than she expressed to others on other occasions. However, he did not deny that her pain symptoms were real or that they were caused by a soft-tissue injury to her lower back. More generally, there is no evidence that contradicts the diagnosis of Dr. Chow of a soft-tissue injury to her lower back, as well as her neck and upper back, as a result of the Accident. At best, the defendant has demonstrated that the vibrations suffered as a Wheel Trans driver may also have contributed to her present condition.

Determinations

[52] Based on the evidence set out above, I make the following five determinations.

[53] First, I am satisfied on the evidence that the plaintiff suffers from the three categories of pain described above. In particular, based on the opinion of Dr. Chow, which was not contradicted by Dr. Devlin, I find that the plaintiff has suffered a soft-tissue injury to her lower back. The plaintiff has established, on a balance of probabilities, that this injury results in pain as a consequence of over-exertion, exercise, and awkward movements or postures.

[54] Second, I am satisfied that the Accident caused or materially contributed to the plaintiff's physical injuries including the injury to her lower back. The evidence of soft-tissue injuries to her neck and upper back resulting from the Accident are acknowledged. The onset of her lower back pain is sufficiently close to the date of the Accident to have been caused by the Accident. More significantly, Dr. Chow was of the express opinion that the plaintiff suffered a soft tissue injury to her lower back as a result of the Accident. While Dr. Devlin did not concur with Dr. Chow's observation of the extent of the pain experienced by the plaintiff, he did not contradict the opinion of Dr. Chow with respect to the cause of her lower back injury.

[55] Third, the plaintiff has demonstrated, on a balance of probabilities, that her intended and preferred career in 2002 and until the date of the trial, was a truck/coach technician, rather than a hospital porter or a Wheel Trans driver. This is amply demonstrated in a number of ways.

[56] The plaintiff is a very focussed, responsible and independent-minded person who exhibits a very strong and commendable desire to support herself and better the lifestyle of both her and her daughter. Since the birth of her daughter, she has worked long hours each week and on weekends to support them, as well as attended her two programmes at Centennial College. She had just completed a one-year degree programme in truck/coach mechanics at the time of the Accident. Previous to this programme, she had completed a two-year programme in airplane maintenance and engineering, which, while a different vocation, involved many of the same skills and education as a truck/coach technician. In attending Centennial College, she had incurred considerable expense including her tuition, books, and tools, which are understood to have cost approximately \$5,000, as well as foregoing considerable income. The fact that she financed her expenses in part by student loans and in part by working evenings and weekends at two hospitals reflects the level of her commitment. Both programmes, as well as her own practice of personally maintaining her two cars and a motorcycle, also confirm the plaintiff's testimony of her interest in mechanics generally. Moreover, while at Centennial College in her second programme, she volunteered 4-5 hours per week at Big Wheels to get experience to assist her in getting an apprenticeship position and, ultimately, received an offer from Big Wheels that she accepted. By contrast, her positions at the hospitals, which were unskilled housekeeping positions, and most recently at Humber, a porter position, were all less well paid and offered far less job satisfaction.

[57] Fourth, I find that the plaintiff is physically unable to pursue a career as a truck/coach technician as a result of the injury to her lower back, which prevents her from performing the responsibilities of that occupation to a satisfactory standard without intolerable pain. I accept the plaintiff's evidence on this issue, in part on the basis of my finding of her credibility, and, in part, as a necessary inference from her history to the date of the Accident. Not only is there no explanation for her failure to commence her apprenticeship as a truck/coach technician, but there

is also very compelling evidence of her commitment to that occupation as a path to a better future as she saw it and of her interest in a mechanical occupation. This finding is also supported by the opinions of two experts - Mr. Balaban, in his functional capacity evaluation and Dr. Chow, who was of the opinion that the plaintiff was unable to return to a physically demanding job. As Dr. Devlin's opinion only addressed the plaintiff's ability to work at a sedentary job or a job that entailed only mild physical demands, and as he was not asked to address her ability to meet the requirements of a truck/coach technician, his opinion does not contradict the conclusion of Dr. Chow.

[58] Fifth, I find that the plaintiff suffers from an Adjustment Disorder with Depressed Mood and that this psychological condition arises as a result of the Accident. This conclusion is based principally on the opinion of Dr. Miller who attributed this psychological condition to two causes. The principal cause was the loss of her intended career as a truck/coach technician; the other cause was the difficulty experienced with her daughter. There is ample evidence upon which Dr. Miller could rely in reaching her opinion that the plaintiff's loss of her intended career, and her sense of loss of her future plans, lifestyle and opportunities associated with this career, materially contributed to this psychological condition.

[59] The defendant provided no contradictory evidence regarding the plaintiff's psychological condition. Instead, he relied upon the outpatient note of the Mt. Sinai Clinic dated April 4, 2004, which made reference to a "change of career from a path toward work in aviation to her present work with Toronto transit". It also referred to increasing problems with the plaintiff's daughter and a sense of being "at [her] wits end in trying to respond to her daughter's behavioural problems". There is no explanation for the reference to aviation. However, in the absence of testimony from the Mt. Sinai psychiatrist, in view of the findings of credibility with respect to the plaintiff and the very general nature and purpose of this note, I have accepted the plaintiff's statement that the note does not accurately reflect her statements to the psychiatrist.

Analysis and Conclusions

Applicable Law

[60] Section 267.5(5) of the *Insurance Act*, as in force at the time of the Accident, provides as follows:

Despite any other Act and subject to subsection (6), the owner of an automobile, the occupants of an automobile and any person present at the incident are not liable in an action in Ontario for damages for non-pecuniary loss, including damages for non-pecuniary loss under clause 61(2)(e) of the *Family Law Act*, from bodily injury or death arising directly or indirectly from the use or operation of the automobile, unless as a result of the use or operation of the automobile the injured person has died or has sustained,

- (a) permanent serious disfigurement; or

- (b) permanent serious impairment of an important physical, mental or psychological function.

In this matter we are concerned with whether the plaintiff satisfies the test under paragraph (b).

[61] In *Ahmed v. Challenger*, [2000] O.J. No. 4188 at para. 17 (Sup. Ct.), Jennings J. set out the three questions to be answered under the current legislation as follows:

1. Has the injured person sustained permanent impairment of a physical, mental, or psychological function?
2. If yes, is the function which is permanently impaired an important one?
3. If yes, is the impairment of the important function serious?

[62] I have addressed the three-step test in *Ahmed* by applying the principles articulated in *Meyer v. Bright* (1994), 15 O.R. (3d) 129 (C.A.).

[63] It is clear from *Meyer v. Bright* at pages 145-46 that the onus of proof rests on the plaintiff to establish on a balance of probabilities that she is entitled to rely on the exemption in subsection 267.5(5)(b):

The onus of proving damages always rests upon the plaintiff. We can see no reason why there should be any change in that rule in one of these cases. Moreover, the injured person would be seeking to come within a statutory exception. The onus of proof usually rests upon a person seeking to bring himself or herself within a statutory exception. It is our opinion that the onus of proof rests upon the injured person to establish upon the balance of probabilities that he or she is a person entitled to one of the exceptions found in [the predecessor of subsection 267.5(5)(a) and (b)].

Is There a Permanent Impairment Arising from the Accident?

[64] Turning to the first question, I am of the opinion that the plaintiff has sustained a permanent impairment of a physical function.

[65] As set out above, I am satisfied that the plaintiff has suffered two specific impairments. First, she suffers from chronic pain related to soft tissue injuries associated with her lower back. Second, she suffers from a psychological condition described as an Adjustment Disorder with Depressed Mood.

[66] The plaintiff has established that the soft tissue injury to her back, and related chronic pain, are permanent. This conclusion was supported by Dr. Chow. Even though Dr. Devlin was of the impression that the lower back pain occurred with less frequency than Dr. Chow, he did not contradict Dr. Chow's conclusion that her lower back condition, as he found it, was also permanent. I would add that the finding of the permanence of her condition is reinforced by the

fact that Dr. Chow's opinion remained consistent across his three examinations, which covered almost three years commencing in October 2003.

[67] However, while the implication from Dr. Miller's testimony is that the plaintiff's psychological condition is of indefinite duration, she did not opine that it was permanent. Nor is there any evidence before the Court that this condition was permanent.

[68] Accordingly, I have proceeded on the basis that this "threshold motion" is limited to a consideration of whether the soft tissue injuries to the plaintiff's lower back, and the accompanying chronic pain, satisfy the requirements of section 267.5(5) of the *Insurance Act*.

Is the Impairment Important?

[69] *Meyer v. Bright* requires that the bodily function must be important to the injured person as a whole. For this purpose, the Court must consider the effect that the relevant bodily function has upon the plaintiff's way of life in the broadest sense. I have no hesitation in finding that a lower back injury is an impairment of an important bodily function. I understand that the defendant does not dispute this conclusion.

Is the Impairment Serious?

[70] The third question requires that the impairment be serious to the plaintiff. *Meyer v. Bright* indicates that, generally, a serious impairment is one that causes substantial interference with the ability of the injured person to perform his or her usual daily activities or to continue his or her employment.

[71] The Court of Appeal also made it clear at page 150 of that decision that not all limitations on the enjoyment of life give rise to a serious impairment:

We would conclude from the findings of fact ... that the permanent impairment of important bodily functions has detrimentally impacted mainly upon Mrs. Meyer's enjoyment of life. Because it is only a serious impairment which will qualify as an exception under s. 266(1)(b) [the predecessor of s. 267.5 (5)(b)], it is apparent that *the Legislature intended that injured persons are required to bear some interference with their enjoyment of life without being able to sue for it.* (Emphasis added)

[72] In *Meyer v. Bright*, the Court of Appeal made it clear at pages 142 and 158 that an impact on employment short of affecting the ability to continue one's employment does not constitute a serious impairment:

... generally speaking, a serious impairment is one which causes substantial interference with the ability of the injured person to perform his or her usual daily activities *or to continue his or her regular employment...*

Where ... permanent impairment of important bodily functions *frustrates the chosen career path of an injured person* we think the impairment is properly described as being a serious one for that person. (Emphasis added)

[73] The issue for the Court is therefore whether the effect on the plaintiff's employment or the interference with the plaintiff's enjoyment of life goes beyond the tolerable to the serious: see *Frankfurter v. Gibbons*, [2004] O.J. No. 4969 at para. 22 (Ont. Div. Ct.).

[74] The impairment suffered by the plaintiff in the form of chronic pain to her lower back as a result of a soft tissue injury is undoubtedly frustrating and unpleasant. Without question, at times it renders the plaintiff's life more difficult. However, in the particular circumstances of this action, the parties agree that this impairment does not cause such substantial interference

with the plaintiff's ability to perform her usual daily activities as would qualify her injury as "serious" according to this branch of the standard in *Meyer v. Bright*. She has been able to return to a regular regime of exercise including jogging and weight training, even if she does not exercise as frequently before the Accident. She has also resumed attending to all of her household chores, including grocery shopping, and has no difficulty driving.

[75] The plaintiff, however, relies on the second branch of the test of *Meyer v. Bright*, which qualifies impairment as "serious" if it "frustrates the chosen career path of an injured person". She says that her inability to commence her intended career as an apprentice truck/coach technician satisfies this test. The defendant argues that it cannot be said that the Accident has frustrated the chosen career path of the plaintiff in the absence of evidence that she attempted to return to work and was unable to meet the requirements of that occupation. He submits that her employment situation after the Accident was unchanged. She returned to the same hospital positions at which she had worked before the Accident.

[76] The applicable principles of law are set out in *Meyer v. Bright* in its consideration of the appeal in *Lento v. Castalda*, which involved a 28 year-old licensed journeyman auto body mechanic who sustained serious injuries to his left foot and left hand that prevented him from continuing in his occupation. The relevant passages of the decision of the Court of Appeal, at page 158, are as follows:

Where, as here, permanent impairment of important bodily functions frustrates the chosen career path of an injured person we think the impairment is properly described as being a serious one for that person. ...

In this case, the financial impact upon the life of the injured person is substantial. But even if it were not, we are of the opinion that the frustration of an injured person's chosen career path generally should be considered to be a serious matter. One can contemplate a permanent impairment of an important bodily function which might force an injured person into a career path, different from the chosen one, but which turns out to be economically more advantageous. It might not however, give the same personal satisfaction. An artist may be driven by an injury to practice law. The question of the economic loss or the lack of it is something which would bear upon the quantum of damages to be assessed. Where an injured person has invested years of his or her life in study, training and gaining experience to pursue a chosen career, an impairment of an important bodily function which frustrates the pursuit of that career, regardless of the financial consequences, is capable of being found to be a serious impairment within the meaning of those words as found in s. 266(1)(b) [the predecessor of s. 267.5 (5)(b)].

[77] In the present case, I am satisfied that the plaintiff has established that the injury has frustrated the pursuit of her career as contemplated by *Meyer v. Bright* and, accordingly, has established that her impairment is "serious" for purposes of the provisions of section 267.5(5)(b) of the *Insurance Act*.

[78] This conclusion is based on the findings set out above. I am satisfied that (1) the plaintiff's intended and preferred career in 2002 and until the date of the trial was a truck/coach technician, and (2) the plaintiff is physically unable to pursue that career as a result of the injury to her lower back, which prevents her from performing the responsibilities of that occupation to a satisfactory standard without intolerable pain.

[79] I do not think that the test is so inflexible as to require that the plaintiff had actually commenced her employment. It may be more difficult, as an evidentiary matter, to prove that an injury has frustrated the pursuit of a career if a plaintiff has not yet commenced that career, but there is no arbitrary rule that precludes a claim based on the failure of a plaintiff to commence or return to his or her intended career. I agree with the plaintiff that the test is satisfied in this action if it can be demonstrated, on a balance of probabilities, that she would have commenced her apprenticeship as a truck/coach technician on the Monday following the Accident if the Accident had not occurred. I think that such conclusion is a necessary inference from the two findings set out above and the evidence in support of those findings also set out above. I note as well that, on the day of the Accident, the plaintiff had attended at Big Wheels for the express purpose of dropping off her tools in anticipation of beginning work on the following Monday.

[80] Lastly, while it is not a necessary part of this conclusion, I would also note that the plaintiff's financial circumstances are similar to those envisaged in the passage cited above from *Meyer v. Bright*. The fact that the plaintiff may have earned more in her position as a Wheel Trans driver since the Accident than she would have as an apprentice truck/coach technician, at least in the early years as an apprentice, does not exclude a finding of a serious impairment within the meaning of those words as found in s. 267.5 (5)(b) of the *Insurance Act*.

Conclusion

[81] Based on the foregoing, I conclude that the plaintiff has satisfied the onus on her of demonstrating that the soft tissue injury to her lower back, as well as associated pain, constitutes a permanent serious impairment of an important physical function for purposes of s. 267.5 (5) of the *Insurance Act*. Accordingly, the defendant's "threshold motion" is dismissed.

H.J.W. Siegel J.

DATE: November 14, 2006